

25STCV27652 25STCV27652

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-08

Motion: PLAINTIFF GRACIELA MOJARRO VELAZQUEZ'S NOTICE OF MOTION AND MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR DEMAND FOR INSPECTION AND PRODUCTION OF DOCUMENTS, SET ONE; REQUEST FOR SANCTIONS

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Case Number: 25STCV27652 Hearing Date: September 8, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

GRACIELA MOJARRO VELAZQUEZ,

Plaintiff(s),

vs.

MAZDA MOTOR OF AMERICA, INC.; DICK BROWNING, INC.; and DOES 1-100, inclusive,

Defendant(s).

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CASE NO: 25STCV27652

[TENTATIVE] ORDER RE: PLAINTIFF GRACIELA MOJARRO VELAZQUEZ'S NOTICE OF MOTION AND MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR DEMAND FOR

INSPECTION AND PRODUCTION OF DOCUMENTS, SET ONE; REQUEST FOR SANCTIONS

Dept. 731

September 8, 2026

8:30 a.m.

Matter No. 13

Moving Party: Plaintiff, Graciela Mojarro Velazquez

Opposing Party: Defendant, Mazda Motor of America, Inc.

Notice: OK

Background Facts

Now before the Court is Plaintiff, Graciela Mojarro Velazquez's June 3, 2026, motion to compel further responses from Defendant Mazda Motor of America, Inc. ("Defendant" or "Mazda") in relation to Plaintiff's Requests for Production of Documents ("RFP"), Set One, Nos. 8, 10, 12, 17, 20, 50, 51, 101, and 106.

The parties' opposition and reply papers agree that, on July 24, 2026, Mazda served supplemental responses to RFP, Set One, Nos. 8, 10, 12, 17, 20, and 106, later producing responsive documents on August 25, 2026, leaving only disputes relating to RFP, Set One, Nos. 50, 51, and 101, and as to monetary sanctions.

Motion to Compel Further Production Responses; Request for Sanctions

Motion to Compel Further Responses

Meet and Confer

A motion to compel further production must be accompanied by a meet and confer declaration under Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Here, the moving papers show a sufficient basis to determine that a proper meet and confer effort preceded the filing of Plaintiff's motion. (Motion, Meagle Decl., ¶¶ 12-14, Exs. F-H [¶ 13 used twice].)

Legal Standard

A motion to compel a further response is used when a party gives unsatisfactory answers or makes untenable objections to interrogatories, demands to produce, or requests for admission. (See Code Civ. Proc., § 2031.310, subd. (a); 403.)

To request further production, a movant must establish: (1) good cause for the production (Code Civ. Proc., § 2031.310, subd. (b)(1); Sinaiko, *supra*, Sinaiko at p. 403); and (2) that a further response is needed because (a) the responding party's statement of compliance with the demand to produce is incomplete Code Civ. Proc., § 2031.310, subd. (a)(1)), (b) the responding party's representation that it is unable to comply is inadequate, incomplete, or evasive (Code Civ. Proc., § 2031.310, subd. (a)(2)), (c) the responding party's objection in the response is without merit or is too general (Code Civ. Proc., § 2031.310, subd. (a)(3); Catalina Island Yacht Club v. Superior Court (2015) 242 Cal.App.4th 1116, 1127), or (d) if the responding party objected to the production of ESI on the ground that it is not reasonably accessible the movant can show that the (i) ESI is reasonably accessible or (ii) there is good cause for production of the ESI regardless of its accessibility (Code Civ. Proc., § 2031.310, subd. (e)).

Discussion

Request Nos. 8, 10, 12, 17, 20, and 106

Per the agreement in the parties' briefing as to these requests, the Court determines that Plaintiff's motion is MOOT as to Request Nos. 8, 10, 12, 17, 20, and 106. (Reply, 3:8-10 ["The dispute before the Court has narrowed considerably. Of the nine requests originally at issue, six—Request Nos. 8, 10, 12, 17, 20, and 106—have been resolved by the further responses MNAO served on July 24, 2026 and the production it made on August 25, 2026"].)

Request Nos. 50, 51, and 101

After review, the Court GRANTS Request Nos. 50, 51, and 101. The requests are relevant to the instant action as detailed in Plaintiff's separate statement. Notably, Mazda failed to file a separate statement in support of its opposition to Plaintiff's motion, thus relying strictly on the objections stated to discovery, as reflected in Plaintiff's separate statement. (See Opposition, 3:8-10 ["The motion should be denied because it is now moot as requests 8, 10, 12 (which was never part of any meet and confer, and in any event where a further response was provided), 17, 20, and 106, and as to requests 50, 51 and 101, defendant's objections should be sustained."].) Should Mazda have any objections in drafting supplemental responses, based on a privilege ground or otherwise, it can raise those objections in a supplemental response and/or privilege log, as applicable.

Conclusion

Plaintiff Graciela Mojarro Velazquez's motion to compel further responses to production requests is accordingly:

(1) MOOT as to Request Nos. 8, 10, 12, 17, 20, and 106; and

(2) GRANTED as to Request Nos. 50, 51, and 101.

Mazda is ORDERED to provide responses responsive to this Order within 30 days of notice of this Order.

Request for Sanctions

Legal Standard

Except in certain circumstances involving electronic stored information, the court must impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2031.310, subd. (h).)

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed. (Cal. Rules of Court, rule 3.1348, subd. (a).)

Discussion

In light of Mazda's supplemental responses and production related to Request Nos. 8, 10, 12, 17, 20, and 106, and the good faith dispute as to Request Nos. 50, 51, and 101, the Court finds that the imposition of sanctions in the amount of \$4,417.50 would be unjust.

Conclusion

Plaintiff Graciela Mojarro Velazquez's request for monetary sanctions is accordingly DENIED.

Plaintiff Graciela Mojarro Velazquez is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 8, 2026 _____

MARK C. KIM

Judge of the Superior Court